

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

21. DEBRA STANLEY V. ROBERT STANLEY

PFL20210202

On March 18, 2026, Respondent filed a Request for Order (RFO) seeking visitation and spousal support orders. He filed his Income and Expense Declaration on March 17th. Both documents were served on Petitioner on March 17th however Respondent did not serve the requisite blank FL-320 or the Notice of Tentative Ruling. The Department of Child Support Services (DCSS) was not served.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent requests a modification of the parenting time orders with a summer vacation schedule, holiday schedule and soccer season schedule. He further asks the court to terminate spousal support.

The parties attended Child Custody Recommending Counseling (CCRC) on March 5, 2026 and were unable to reach any agreements. A report with recommendations was prepared and mailed to the parties on April 17, 2026.

Given that both parties attended and participated in CCRC and given that Respondent is not making a child support request, the court does find good cause to proceed with the matter on its merits despite the defect in service.

The parties and Minors' Counsel appeared for the hearing on April 30, 2026. The parties reached agreements which included the court staying its tentative ruling as to the child custody and parenting plan issues and continued the review hearing to May 28, 2026 at 1:30 PM. All other portions of the tentative ruling were adopted as the court's orders. The court directed that any supplemental declarations were to be filed and served by no later than May 18th.

Petitioner filed a responsive declaration on May 18, 2026. The court deems this to be a supplemental declaration. Proof of Service shows both Respondent and Minors' Counsel were served on May 18th. Petitioner raises concerns about the parenting time with Respondent as well as the lack of follow through on prior orders. Additionally, Petitioner is concerned with the pick-up location for Respondent's parenting time.

Minors' Counsel filed a Statement of Issues and Contentions on May 18, 2026. Parties were served the same day.

Neither Respondent filed not filed a supplemental declaration.

The court orders parties to appear for the hearing.

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TENTATIVE RULING #21: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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22. CHRISTINA STEELE V. JOSHUA WALLER

PFL20160057

Respondent filed a Request for Order (RFO) on January 13, 2026, requesting modification of child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 13, 2026, and a review hearing on April 9, 2026. Proof of Service shows Petitioner was only served with the RFO and a blank CCRC questionnaire.

Both parties appeared for CCRC and fully participated. The minor participated as well. A report with agreements and recommendations was filed with the court on March 2, 2026. Copies were mailed to the parties on March 4th.

On March 27, 2026, Petitioner filed a request to reschedule the hearing due to not being properly served. On April 1, 2026, the court granted the request to continue the hearing to May 28, 2026 and directed Respondent to properly serve Petitioner. There is no Proof of Service showing Petitioner properly served Respondent with the order rescheduling the hearing.

There is no Proof of Service showing Petitioner was properly served, nor is there a Proof of Service showing the Department of Child Support Services, who is a party to the case, was properly served.

Petitioner filed an RFO on March 20, 2026, requesting modification of custody and parenting plan orders. It is set to be heard June 18, 2026. It was served on Respondent March 23, 2026. Respondent filed a responsive declaration to Petitioner's March 20th RFO on April 2, 2026. It was served on April 2, 2026. Neither party has served the Department of Child Support Services (DCSS).

The court has read and considered the filings as outlined above. The court finds good cause to proceed with Respondent's RFO, despite the lack of proper service. The court finds each party is fully aware of the requested orders and fully participated in CCRC. Neither party is requesting a modification of child support and as such the court finds good cause to proceed, despite the lack of service on DCSS. Additionally, the court is advancing the June 18, 2026 hearing to May 28, 2026, as it is duplicative of the January 13th RFO. The court deems Petitioner's March 20th RFO to be a responsive declaration to Respondent's January 13th RFO. The court vacates the June 18th hearing.